

Smt. Poonam Rani Sharma v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 23 February 2021 · WRIT-C No. 22695 of 2020 · WRIT - C No. 22695 of 2020 · **Writ disposed; petitioner to reply to provisional assessment; Assessing Officer to pass a speaking order; demand dated 30.05.2020 not to be pressed till then.**

HEADNOTE

Writ challenging a 30 May 2020 demand on the plea that the checking report was not served as required by Clause 8.1(a)(vi) of the U.P. Electricity Supply Code, 2005. The Court held that inspection procedure and civil liability on alleged theft required a factual inquiry. Without entering the merits, it granted liberty to reply to the provisional assessment within two weeks and directed the Assessing Officer to pass a reasoned speaking order within four weeks of the reply, with the demand not to be pressed till then.

FACTUAL SUMMARY

Smt. Poonam Rani Sharma challenged a demand notice dated 30 May 2020, alleging that the checking report underlying the notice had not been served on her or her representative by any mode prescribed under Clause 8.1(a)(vi) of the U.P. Electricity Supply Code, 2005, that the report was prepared out of vengeance, and that the demand for unauthorised use of electricity was illegal. The Court treated the dispute as one about the inspection team's procedure and civil liability on allegations of theft of electricity.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(a)(vi)

checking-report service; reply to provisional assessment

HOLDING

Without deciding whether the checking report was served as required by Clause 8.1(a)(vi) or whether the demand was illegal, the Court held that the dispute required a factual inquiry. Liberty was granted to furnish a reply to the provisional assessment notice within two weeks. If a reply is filed, the Assessing Officer must decide expeditiously by a reasoned speaking order considering all objections, within four weeks of receipt; any existing final assessment would be subject to that fresh order. The demand notice dated 30.05.2020 shall not be pressed till that order; if no reply is filed, the respondents may proceed in accordance with law. The writ petition was disposed of. ¶ 1

FLAG Petitioner invoked Clause 8.1(a)(vi) (UUE checking-report service); the Court described the same dispute as civil liability for theft of electricity. Clause as cited, not construed.

PRINCIPLE TAGS

relegated-to-assessing-officer A writ attacking a demand on the ground that the checking report was not served under Clause 8.1(a)(vi) was not decided on merits because the dispute required a factual inquiry. The consumer was relegated to reply to the provisional assessment; the Assessing Officer was directed to pass a speaking order; the demand was not to be pressed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHECKING REPORT WAS SERVED ON THE PETITIONER OR HER REPRESENTATIVE BY A MODE PRESCRIBED UNDER CLAUSE 8.1(A)(VI) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005.

The Court declined to enter the merits and treated the dispute as requiring a factual inquiry. ¶ 1

NOT DECIDED — WHETHER THE DEMAND FOR UNAUTHORISED USE OF ELECTRICITY WAS ILLEGAL, OR WHETHER THE CHECKING REPORT WAS PREPARED OUT OF VENGEANCE.

¶ 1

Left to the Assessing Officer after the petitioner's reply. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.